

Ref No.: BD-ACEPM-SAMCO-LET-005

Wednesday, 17th of September 2025

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Documentation of Site Obstacles affecting Project Progress – Area of Building B01, B02, B03 and B04

Reference (S):

- 1) Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-STR-005 dated 10/09/2025
- 2) BIG.P02_ROYA_LT_SAMCO_Commencement Date_002_00

Dear Sir,

With reference to the above-mentioned subject and in reply to the Contractor's letter Ref. No. 1, ACE-PM want to clarify the following response on each point:

1. Site Handover and Work Disruption:

- 1.1 The Contractor's statement that the site was handed over on 7 September 2025 is inaccurate. The official records confirm that possession of the site for Buildings B1 and B2 was effected on 29 June 2025, while possession of Buildings B3 and B4 took place on 7 September 2025, in accordance with the signed site possession.
- 1.2/1.5 Regarding the water leakage issue raised by the Contractor, ACE-PM confirms that the leakage which occurred on 2 September 2025, was minor and resolved on the same day, during which no work was being carried out on site by the Contractor. Additionally, the leakage that occurred on 9 September 2025, it is resolved by 10 September 2025, in coordination with the Contractor site team. There is currently no ongoing issue in this regard. Therefore, in alignment with the Commencement Date referenced in the Employer's Letter Ref. No. 2, the events mentioned in the Contractor's letter are considered concluded and not ongoing and have been resolved prior to the Commencement Date.
- 1.3 The Contractor has already commenced works and is currently present on site carrying out the required testing activities. Access to the site has been granted, and testing is proceeding without any hindrance, except for two test points which were temporarily affected by water leakage. These two points were successfully tested on the following day, and no further issues have been reported.
- 1.6 No such coordination or any documentation sent to ACE-PM regarding surveying works or excavation during this period.
- 1.7 With respect to the Contractor's request for an extension of time, such a request cannot be considered valid, as it has not been submitted in compliance with the requirements of the Contract. Any claim for an extension of time must follow the procedures set out under Sub-Clause 20.1 [Contractor's Claims], and must be supported by proper documentation as required under Sub-Clause 8.3 [Programme] and Sub-Clause 8.4 [Extension of Time for Completion]. Until such submissions are properly made, no adjustment to the Time for Completion will be considered.

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2. Study of Water Leakage Impact:

2.1 Reference to the onsite meeting held on 1 September 2025 as the Employer confirmed that the current soil condition is stable and poses no threat to the utilities, however, ACE-PM and The Employer are waiting for technical report prepared by the Contractor for further studies. Moreover, the Contractor neither his subcontractors shall not take and determination for the results of technical reports unless taking approvals from the Employer's Geotechnical Consultant according to contractual procedure in approving such reports accordance to particular condition sub-clause 4.9 (Quality Assurance).

2.2 If any event arises due to a variation in the works, the Contractor shall follow the relevant provisions of the Particular Conditions, specifically Sub-Clauses 13.1 (Right to Vary), 12.3 (Evaluation), and 13.3 (Variation Procedure), in order to obtain the necessary approvals.

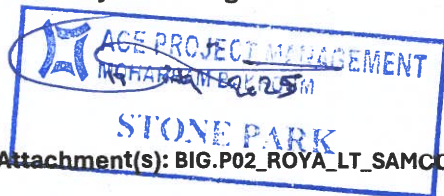
In light of the above, reference is made to the Employer's letter sent to the Contractor regarding the Commencement Date (Ref. No. 2), which led to that the delays previously mentioned by the Contractor shall have no effect on the Project duration. The Contractor is reminded that he is required to adhere to the official Project documentation concerning the Site handover dates and Employer's letter (commencement date), to comply with the contractual procedures for submitting any claims, and to provide the Programme in accordance with Sub-Clause 8.3 of the Contract for ACE-PM's review in order to effectively monitor and control the Project activities. Furthermore, any activity carried out on Site shall be coordinated with project's relevant stakeholder and approval must be obtained at each stage.

Yours faithfully

Eng./ Shady El-Kersh

Project Director

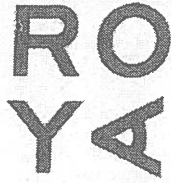
ACE Project Management



Attachment(s): BIG.P02_ROYA_LT_SAMCO_Commencement Date_002_00

CC:

- Eng. Mostafa Galal, Owner's Representative
- Eng. Wael Ismael, Resident Engineer



Letter NO. BIG.P02_ROYA_LT_SAMCO_ Commencement Date_002_00

Project: The Big ("Project")

Commencement Date

Date: 11/09/2025

To: Al-Wataniya for Construction – Samco ("Contractor")

Subject: Commencement of Works – Civil Works for (Buildings B1, B2, B3, B4)

This Agreement was made and entered into on **30 April 2025** (the "Effective Date").

With reference to the Contract signed on the Effective Date for the execution of the structural concrete works for Buildings B1, B2, B3, and B4 (the "Works") within The Big Project (the "Project"), and further to the site handover carried out as follows:

- 29 June 2025 – Possession of the site for Buildings B1 and B2
- 07 September 2025 – Possession of the site for Buildings B3 and B4

We confirm that the site handover for all four buildings has been completed, and possession records have been duly acknowledged.

In line with Sub-Clause 8.1 [Commencement of Works], and having satisfied the commencement conditions, including:

- Site possession,
- Undertaking a letter regarding responsibility for permits, and
- Advance Payment arrangements.

The official Commencement Date for the Works is fixed as **11 September 2025**.

Accordingly, the Time for Completion of the Works shall be **19 months** from the Commencement Date, i.e. expiring on **11 April 2027**, subject to any extensions granted under the Contract.

This letter, together with the site possession records and the other commencement conditions outlined in the Contract, shall collectively be deemed confirmation of commencement in accordance with the Contract. This letter shall be considered an integral part of the Contract terms.

Handwritten signature and date: 11/9/2025

Commercial Director
Eng. Mahmoud El Saadany

For M. Shalika

